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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRM-M-29153-2026 (O&M)

Date of decision 03.06.2026

JOGINDER SINGH @ LALI

..... PETITIONER

VERSUS

STATE OF PUNJAB

.....RESPONDENT

CORAM: HON'BLE MS. JUSTICE SHALINI SINGH NAGPAL

Present : Mr. Namish Sodhi, Advocate
for the petitioner.

Mr. Akash Yadav, AAG, Punjab.

SHALINI SINGH NAGPAL J.

1. Petitioner seeks regular bail in case vide FIR No. 47 dated 15.03.2022, under Sections 379, 473, 411, 201 Indian Penal Code, Police Station Sadar, Tarn Taran, District Tarn Taran. This is the first petition for regular bail.

2. Learned counsel for the petitioner submits that petitioner was arraigned as an accused in the above-mentioned FIR on the allegation that he had purchased the stolen motorcycle from co-accused. Petitioner was allowed anticipatory bail vide order dated 23.03.2022, Annexure P2 whereafter he joined investigation. Later, trial commenced and petitioner absented from the trial proceedings. He was ordered to be summoned by way of non-bailable warrants of arrest when he failed to put in appearance on 29.10.2025. He again moved application for anticipatory bail which was allowed by learned District and Sessions Judge, Tarn Taran on 03.12.2025 directing petitioner to surrender before the trial Court within 7 days and



move an application for surrender and bail. Petitioner could not surrender before the trial Court within the time given due to some miscommunication. Later, petitioner was declared proclaimed offender on 03.01.2026. He surrendered in the Court on 02.04.2026 and was in custody since then. He thus prayed that petitioner be enlarged on regular bail.

3. Notice of Motion.

4. Mr. Akash Yadav, AAG, Punjab, accepts notice on behalf of Respondent State and opposes the prayer for regular bail on the ground that petitioner was habitual of evading Court proceedings and had misused the concession of regular bail and anticipatory bail granted on previous occasions. Therefore, he did not deserve the concession of regular bail.

5. The case is triable by the Court of Magistrate. Petitioner is 61 years of age. He is behind bars for 2 months. Trial is at the stage of prosecution evidence. Seven witnesses are yet to be examined. Conclusion of trial is likely to take some time. Antecedents of the petitioner are clean and his further detention is not warranted. Considering the nature and substance of allegations, period of custody, antecedents of the petitioner and all relevant facts and circumstances of the case but without commenting on merits, the petition is allowed. Petitioner is ordered to be released on regular bail subject to his furnishing adequate bail and surety bonds to the satisfaction of trial Court/Duty Magistrate.

6. All the pending miscellaneous applications, if any, stand disposed of.

(SHALINI SINGH NAGPAL)
JUDGE

03.06.2026
Sumit Singla

Whether Speaking/Reasoned	:	Yes/No
Whether Reportable	:	Yes/No